SRI®
SINGAPORE REALTORS INC

NEW AML
REGULATION GUIDEBOOK

VERSION 4 (NOV 2025)

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SELLERS AND LANDLORDS

PMLPFTF* LEGISLATION STIPULATED PROCESS FOR CONDUCT OF CUSTOMER DUE DILIGENCE

*PMLPFTF (PREVENTION OF MONEY LAUNDERING, PROLIFERATION FINANCING AND TERRORISM FINANCING)

STEP 1 ENGAGE SELLER / LANDLORD

STEP 2 CONFIRM CLIENT IDENTITY/SIGN CEA FORM **(ADVISABLE TO ALSO GET CLIENT TO SIGN CUSTOMER PARTICULARS FORM)**

STEP 3 CONDUCT AMICUS SEARCHES ON UN/TSOFA

STEP 4 COMPLETE CUSTOMER DUE DILIGENCE (CDD)

IS YOUR CUSTOMER'S PROFILE/ TRANSACTION HIGH RISK BASED ON YOUR ASSESSMENT?

NO
PROCEED TO STEP 5

YES
CONDUCT ECDD
REFER TO PAGES 5 & 6

SUBMIT TO EA FOR APPROVAL

DEEMED SAFE TO PROCEED
PROCEED TO STEP 5

DEEMED UNSAFE TO PROCEED BY RES/NOT APPROVED BY EA

DISCONTINUE REPRESENTATION/FILE STR

STEP 5 SIGN RELEVANT CUSTOMER PARTICULARS FORM IF NOT DONE EARLIER

STEP 6 CONDUCT OWNERSHIP SEARCH

STEP 7 COMMENCE MARKETING PROPERTY

*** EA APPROVAL FOR ECDD TURNAROUND TIME WILL BE **TWO (2) CALENDAR DAYS**

NOTE: ALL SUCH APPROVAL REQUESTS MUST BE SENT TOGETHER WITH THE AML SEARCH REPORT AND BASIC TRANSACTION INFORMATION (I.E. PARTIES REPRESENTED) ECDD FORM TO **COMPLIANCE@SRI.COM.SG**

PURCHASERS AND TENANTS

PMLPFTF* LEGISLATION STIPULATED PROCESS FOR CONDUCT OF CUSTOMER DUE DILIGENCE

*PMLPFTF (PREVENTION OF MONEY LAUNDERING, PROLIFERATION FINANCING AND TERRORISM FINANCING)

STEP 1 PURCHASER/TENANT

STEP 2 CONFIRM CLIENT IDENTITY/SIGN CEA FORM **(ADVISABLE TO ALSO GET CLIENT TO SIGN CUSTOMER PARTICULARS FORM)**

STEP 3 CONDUCT AMICUS SEARCHES ON UN/TSOFA

STEP 4 COMPLETE CUSTOMER DUE DILIGENCE (CDD)

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DISCONTINUE REPRESENTATION/FILE STR

STEP 5 SIGN RELEVANT CUSTOMER PARTICULARS FORM IF NOT DONE EARLIER

STEP 6 CONDUCT OWNERSHIP SEARCH

STEP 7 PREPARE & EXECUTE TRANSACTION DOCUMENTS

*** EA APPROVAL FOR ECDD TURNAROUND TIME WILL BE **TWO (2) CALENDAR DAYS**

NOTE: ALL SUCH APPROVAL REQUESTS MUST BE SENT TOGETHER WITH THE AML SEARCH REPORT AND BASIC TRANSACTION INFORMATION (I.E. PARTIES REPRESENTED) ECDD FORM TO **COMPLIANCE@SRI.COM.SG**

ENHANCED CUSTOMER DUE DILIGENCE

MOVING FORWARD, YOU WILL ONLY BE REQUIRED TO COMPLETE THE ECDD UNDER THE FOLLOWING CONDITIONS:

1. **IF THE CLIENT OR BENEFICIAL OWNER (BO) IS A FOREIGN POLITICALLY EXPOSED PERSON (PEP), A FAMILY MEMBER OR CLOSE ASSOCIATE OF A FOREIGN PEP.**

2. **IF THE TRANSACTION IS ASSESSED AS HIGH RISK BASED ON THE RED FLAG INDICATORS IN SECTION 2 OF THE RISK DETERMINATION AND SCREENING CHECKLIST**

3. **THE CLIENT OR BO IS FROM A HIGH-RISK OR OTHER MONITORED JURISDICTION**

*4. **WHEN THE EA/RES HAS REASON TO SUSPECT THAT A TRANSACTING PARTY IS ENGAGED IN ML/PF/TF ACTIVITIES**

***APPLIES TO CLIENT, PERSON ACTING ON BEHALF OF CLIENT, OR BENEFICIAL OWNER.**

MANDATORY FORM TO COMPLETE (FORM B/FORM U5)

STEP 1 DETERMINE RISK LEVEL:

HIGH **MEDIUM** **LOW**

STEP 2 FILL IN REASON FOR PROCEEDING WITH TRANSACTION:

Section 3: RES's Risk Determination and Conclusions
If the RES has determined the client or transaction to be presenting a higher risk of ML/PF/TF based on the information obtained during CDD and in this Risk Determination and Screening Checklist, the reasons for concluding that the client or transaction is of a higher risk are to be recorded below. The RES should proceed to conduct ECDD (using Form C) and determine whether to file an STR. Reasons for Conclusion of Risk Level: **MANDATORY TO FILL IN** _____ _____ _____

YOUR CLIENTS - INDIVIDUAL

INDIVIDUAL CLIENTS	FORM A1 CUSTOMER PARTICULARS FORM (INDIVIDUAL)	FORM A2 CUSTOMER PARTICULARS FORM (FOR ENTITY/ LEGAL ARRANGMENT)	FORM A3 PARTICULARS OF INDIVIDUAL YOUR CLIENT IS ACTING ON BEHALF OF	FORM A4 PARTICULARS OF LEGAL PERSON ENTITY/ LEGAL ARRANGEMENT) YOUR CLIENT IS ACTING ON BEHALF OF)	FORM B RISK DETERMINATION AND SCREENING (CDD) **ONE FOR EACH PERSON & EACH SHAREHOLDER**
	✓				✓
	✓		✓		✓ ✓
COMPANY/ TRUST	✓			✓	✓ ✓+

PURPLE ▸ YOUR CLIENT

GREY ▸ PERSON/COMPANY YOUR CLIENT IS ACTING ON BEHALF

YOUR CLIENTS – COMPANY/TRUST

ENTITY/ LEGAL ARRANGEMENT CLIENTS	FORM A1 CUSTOMER PARTICULARS FORM (INDIVIDUAL)	FORM A2 CUSTOMER PARTICULARS FORM (FOR ENTITY/ LEGAL ARRANGMENT)	FORM A3 PARTICULARS OF INDIVIDUAL YOUR CLIENT IS ACTING ON BEHALF OF	FORM A4 PARTICULARS OF LEGAL PERSON ENTITY/ LEGAL ARRANGEMENT) YOUR CLIENT IS ACTING ON BEHALF OF)	FORM B RISK DETERMINATION AND SCREENING (CDD) **ONE FOR EACH PERSON & EACH SHAREHOLDER**
COMPANY/ TRUST		✔			✔+
COMPANY/ TRUST		✔	✔		✔+✔
COMPANY/ TRUST COMPANY/ TRUST		✔		✔	✔+✔+

PURPLE ▸ YOUR CLIENT

GREY ▸ PERSON/COMPANY YOUR CLIENT IS ACTING ON BEHALF

UNREPRESENTED CLIENTS - INDIVIDUAL

INDIVIDUAL UCP (UNREPRESENTED COUNTER PARTY OR DIRECT CLIENT)	FORM U1 UCP PARTICULARS FORM (INDIVIDUAL)	FORM U2 UCP PARTICULARS FORM (FOR ENTITY/ LEGAL ARRANGMENT)	FORM U3 PARTICULARS OF INDIVIDUAL THE UCP IS ACTING ON BEHALF OF	FORM U4 PARTICULARS OF LEGAL PERSON ENTITY/ LEGAL ARRANGEMENT) THE UCP IS ACTING ON BEHALF OF)	FORM U5 RISK DETERMINATION AND SCREENING (CDD) ONE FOR EACH PERSON & EACH SHAREHOLDER
	✓				✓
	✓		✓		✓ ✓
COMPANY/ TRUST	✓			✓	✓ ✓+

ORANGE ▸ UNREPRESENTED CLIENT

GREY ▸ PERSON/COMPANY THE UNREPRESENTED CLIENT IS ACTING ON BEHALF

UNREPRESENTED CLIENTS - COMPANY/ TRUST

ENTITY/ LEGAL ARRANGEMENT UCP (UNREPRESENTED COUNTER PARTY OR DIRECT CLIENT)	FORM U1 UCP PARTICULARS FORM (INDIVIDUAL)	FORM U2 UCP PARTICULARS FORM (FOR ENTITY/ LEGAL ARRANGMENT)	FORM U3 PARTICULARS OF INDIVIDUAL THE UCP IS ACTING ON BEHALF OF	FORM U4 PARTICULARS OF LEGAL PERSON ENTITY/ LEGAL ARRANGEMENT) THE UCP IS ACTING ON BEHALF OF)	FORM U5 RISK DETERMINATION AND SCREENING (CDD) ONE FOR EACH PERSON & EACH SHAREHOLDER
COMPANY/ TRUST		✔			✔+
COMPANY/ TRUST		✔	✔		✔+✔
COMPANY/ TRUST COMPANY/ TRUST		✔		✔	✔+✔+

ORANGE ▸ UNREPRESENTED CLIENT

GREY ▸ PERSON/COMPANY THE UNREPRESENTED CLIENT IS ACTING ON BEHALF

REGULATORY UPDATE SUMMARY

CDD	FORM B (CLARIFYING WITH CEA FOR LEASING TRANSACTIONS) FORM U5
CPF	FORM A1 TO A4 FORM U1 TO U4
YOUR CLIENTS	FORM A AND FORM B
CLIENTS WITHOUT AGENTS	FORM U1 TO U4 AND FORM U5
CLIENTS WITH AGENTS (ICB/ECB)	DON'T NEED TO DO ANYTHING (NO CPF OR CDD REQUIRED)
HDB RENTAL (WHOLE FLAT. ROOM RENTAL)	DON'T NEED TO DO ANYTHING (NO CPF OR CDD REQUIRED)
IF CUSTOMER PROFILE/TRANSACTION IS HIGH RISK BASED ON YOUR ASSESSMENT, COMPLETE THE ENHANCED CUSTOMER DUE DILIGENCE (ECDD) AND SUBMIT TO EA FOR APPROVAL BEFORE SIGNING OF TRANSACTION DOCUMENTS.	ECDD REQUIRED FORM C FORM U6
ECDD FORM	EMAIL TO COMPLIANCE@SRI.COM.SG FOR APPROVAL TOGETHER WITH AML SEARCH BASIC TRANSACTION INFORMATION (I.E. PARTIES REPRESENTED) & ECDD FORM (INTERIM WHILE WAITING FOR DEVELOPMENT OF SYSTEM)
ECDD RESPONSE TIME	2 CALENDAR DAYS
AML REPORT	GENERATE FROM ONEPOINT IGNORE CDD, CPF USE THE NEW FORMS (INTERIM WHILE WAITING FOR DEVELOPMENT OF SYSTEM)
ONGOING DUE DILIGENCE	CLARIFYING WITH CEA FORM D

SALES CHECKLIST

- OPTION TO PURCHASE - **COMPLETE SET**
- CEA FORM
  - **RESIDENTIAL**
  - **SRI COMMISSION FORM (INDUSTRIAL/COMMERCIAL)**
- AML SEARCH REPORT
- CPF (FORMS A1-4/U1-4)
- CDD (FORMS B/U5)
- COPIES/ DIGITAL COPIES OF NRIC/ PASSPORT

ADDITIONAL DOCUMENTS WHERE APPLICABLE

- LATEST ACRA IF CLIENT IS A BUSINESS ENTITY (E.G COMPANY)
- CO-BROKE COMMISSION AGREEMENT (EXTERNAL CO-BROKE, COMMISSION SHARING)
- MUTUAL AGREEMENT (COMMISSION SHARING WITH SRI SALESPERSON)
- LETTER OF AUTHORISATION OR CONSENT/ COMPANY RESOLUTION/ POA/ GRANT OF PROBATE/ COURT ORDER/ ADMINISTRATOR LETTER
- ENHANCE CDD IF REQUIRED (FORM C/ U6)

RENTAL CHECKLIST

- TENANCY AGREEMENT/RENEWAL AGREEMENT - **COMPLETE SET**
- **ANNEX A** (CHECKLIST FOR LEASE OF RESIDENTIAL PROPERTIES IN COMPLIANCE WITH WOMEN'S CHARTER & IMMIGRATION ACT)
- STAMP DUTY CERTIFICATE
- CEA FORM **(RESIDENTIAL)**
- AML SEARCH REPORT ***NOT REQUIRED FOR HDB FLAT/ROOM RENTAL***
- CPF (A1-4/ U1-4 FORMS) ***NOT REQUIRED FOR HDB FLAT/ROOM RENTAL***
- CDD (FORM B/ FORM U5) ***NOT REQUIRED FOR HDB FLAT/ROOM RENTAL***
- COPIES/ DIGITAL COPIES OF NRIC, WORK PASS, OR ANY OTHER IMMIGRATION PASSES (FOR ALL TENANT & OCCUPANTS)
- COPIES OF PASSPORT (FOR ALL FOREIGNER TENANT & OCCUPANTS)
- COPIES OF THE MOM/ ICA/ FILESG SCREEN CAPTURE OR ACKNOWLEDGEMENT SLIP TO VERIFY THE VALIDITY OF THE NRIC/ WORK PASSES/ LTVP

ADDITIONAL DOCUMENTS WHERE APPLICABLE

- LATEST ACRA IF CLIENT IS A BUSINESS ENTITY (E.G COMPANY)
- CO-BROKE COMMISSION AGREEMENT (EXTERNAL CO-BROKE CASE, COMMISSION SHARING)
- MUTUAL AGREEMENT (COMMISSION SHARING WITH SRI SALESPERSON)
- ENHANCE CDD IF REQUIRED (FORM C/ U6)
- LETTER OF AUTHORISATION OR CONSENT/ COMPANY RESOLUTION/ POA/ GRANT OF PROBATE/ COURT ORDER/ ADMINISTRATOR LETTER

RENTAL CHECKLIST (COMMERCIAL/ INDUSTRIAL)

- TENANCY AGREEMENT/ RENEWAL AGREEMENT - **COMPLETE SET**
- SRI COMM FORM
- AML SEARCH REPORT
- CPF (A1-4/ U1-4 FORMS)
- CDD (FORM B/ U5)
- STAMP DUTY CERTIFICATE

ADDITIONAL DOCUMENTS WHERE APPLICABLE

- LATEST ACRA IF CLIENT IS A BUSINESS ENTITY (E.G COMPANY)
- CO-BROKE COMMISSION AGREEMENT (EXTERNAL CO-BROKE CASE, COMMISSION SHARING)
- MUTUAL AGREEMENT (COMMISSION SHARING WITH SRI SALESPERSON)
- LETTER OF AUTHORISATION OR CONSENT /COMPANY RESOLUTION/ POA/ GRANT OF PROBATE/ COURT ORDER/ ADMINISTRATOR LETTER
- ENHANCE CDD IF REQUIRED (FORM C/ U6)

REFERENCE MATERIALS AND USEFUL LINKS:

CLICK ON THE ICONS TO VIEW

GUIDE ON ESTATE AGENTS (PREVENTION OF MONEY LAUNDERING, PROLIFERATION FINANCING AND TERRORISM FINANCING) REGULATIONS 2021

ESTATE AGENTS (PREVENTION OF MONEY LAUNDERING, PROLIFERATION FINANCING AND TERRORISM FINANCING) REGULATIONS 2021

HIGH-RISK OR OTHER MONITORED JURISDICTIONS

TERRORISM (SUPPRESSION OF FINANCING) ACT 2002 (TSOFA)

UNITED NATIONS SANCTIONS LISTS OR ANY REGULATIONS MADE UNDER THE UNITED NATIONS ACT 2001 (UN ACT)

FAQ BY CEA

Q1: ARE THERE DIFFERENT CDD FORMS FOR RENTAL AND SALES TRANSACTIONS?

A1: No, EAs/RESs should use the same due diligence forms in the annexes of the PMLFTF Guide (issued on 30 june 2025) for both rental and sale/purchase transactions.

Q2: CAN WE CONTINUE USING THE FORMS FROM THE PREVIOUS PMLFT GUIDE?

A2: No. EAs/RESs should use the forms from the revised PMLPTF Guide (issued on 30 June 2025). The updated forms reflect the latest obligations under the revised Act and Regulations to assist you in complying with statutory obligations.

Q3: AT WHICH POINT SHOULD THE CDD FORM BE COMPLETED? I.E. BY DATE OF TA AND OTP?

A3: CDD should be completed before the client enters into any agreement to buy, sell or lease a property (i.e. before the TA is signed/OTP is issued). The TA and OTP are typically documents through which binding obligations for the acquisition or disposition of interest in property are created.

Q4: HDB RESIDENTIAL RENTAL TRANSACTIONS ARE NOW EXEMPTED FROM CDD REQUIREMENTS. DO WE STILL NEED THE CLIENT TO SIGN FORMS A1 AND B? IF THIS IS NOT REQUIRED, HOW DO WE KNOW WHEN TO FILE AN STR? WOULD WE NEED TO ANSWER WHETHER WE HAVE PERFORMED CDD?

A4: Hdb Residential Rental Transactions Are Exempted From Cdd And Ucpdd Requirements From 1 July 2025. This Means That No Forms (A1, B, U1, U5) Or Aml Screenings Are Required. While Eas And Ress Are Not Required To Conduct Proactive Screening, They Are Still Obligated To Lodge An Str To Report Any Suspicious Circumstances They Become Aware Of During The Course Of Their Work.

For Example, If An Res Encounters A Tenant Who Appears To Consistently Try To Avoid Providing Identifying Information And/Or Keeps Changing The Personal Particulars Provided, This Would Potentially Be Suspicious. In Such A Scenario, The Res Should Take Further Steps To Conduct Due Diligence Where There Are Doubts (E.g. Screen Against The Sanctions Lists) Even If Such Due Diligence Is Not Mandatory, And Lodge An Str If Necessary.

Q5: SECTION 2 OF FORMS B AND U5 LIST A TOTAL OF 29 RED FLAG INDICATORS IN THE CHECKLIST. SOME OF THE QUESTIONS ARE ONLY RELEVANT TO SALE AND PURCHASE OF PROPERTY (E.G. Q7, Q8, Q11). IF I AM FACILITATING A RENTAL TRANSACTION, HOW DO I ANSWER THESE QUESTIONS? SHOULD I TICK "NO" OR LEAVE THEM UNANSWERED?

A5: For rental transactions, you should tick "No" for questions that are specifically related to property purchases (e.g. Q7, Q8, Q11) since these scenarios are not relevant in a rental transaction.

Q6: IF AN RES IS UNABLE TO OBTAIN THE LANDLORD OR TENANT'S SIGNATURE FOR THE CUSTOMER PARTICULARS FORM, DUE TO THEM BEING PUBLIC LISTED COMPANIES, REITS, BANKS, FUND MANAGERS OR BIG CORPORATIONS, SHOULD THE RES JUST INDICATE A REMARK IN THE FORM ACCORDINGLY?

A6: For companies or other entities or legal arrangements, RESS should first ascertain who they are dealing with i.e. whether the individual is duly authorised by the company, entity or legal arrangement. They should obtain the authorisation letter from the company/entity/legal arrangement and have the relevant Customer Particulars Form(s) signed by the authorised representative.

Where the authority of the entity's representative has already been verified but he or she subsequently refuses to provide a signature on the relevant Customer Particulars Form(s), the RES can put a remark that the client is an entity whose representative has refused to provide written acknowledgement of the Form, and attach any relevant correspondence showing the RES' attempt to obtain written acknowledgement.

Q7: WHEN WE ARE ENGAGED BY A POWER OF ATTORNEY (POA) HOLDER, DO WE GET THE POA TO SIGN FORM A1 AND THE ACTUAL PROPERTY OWNER TO SIGN FORM A3? DOES THE SAME APPLY TO THE ESTATE OF A DECEASED PERSON WHERE WE GET THE EXECUTOR TO SIGN FORM A1 AND BENEFICIARIES TO SIGN FORM A3?

A7: Yes, RES should have the POA sign Form A1 and prepare Form A3 for the actual property owners. The RES should then conduct CDD using Form B for both the POA and the property owners.

In the case of the estate of a deceased person, this is a legal arrangement. For such cases, the RES should have the Executor sign Form A1 and prepare Form A4 for the beneficiaries. The RES should then conduct CDD using Form B for both the Executor and the beneficiaries.

Q8: EAS AND RESS MUST ENTER INTO AN AGREEMENT WITH THE CLIENT THAT SETS OUT THE TERMS OF THE BUSINESS RELATIONSHIP BEFORE CONDUCTING ANY ESTATE AGENCY WORK FOR THE CLIENT. IN A NON-EXCLUSIVE ARRANGEMENT, THE CLIENT MAY NOT BE WILLING TO SIGN ANY PAPERWORK UNLESS THE TRANSACTION IS FINALISED. ARE THERE ANY SAMPLE TEMPLATES FOR SUCH AN AGREEMENT?

A8: EAs and RESS can make use of the prescribed estate agency agreements to request their clients to sign. It is in the interest of the EA/RES for such agreements to be signed upfront with their clients so that the terms of the service are clear and to avoid any disputes.

Q9: FOR COMPANIES WITH MULTIPLE LAYERS (E.G. A COMPANY OWNED BY ANOTHER COMPANY) AND IF THE COMPANY IS REGISTERED OUTSIDE OF SINGAPORE (E.G. BRITISH VIRGIN ISLANDS, MARSHALL ISLANDS), HOW EXTENSIVE SHOULD THE CHECKS BE?

A9: The RES should trace the ownership of the companies to the ultimate individual beneficial owners. If, after reasonable efforts, the RES cannot determine the ultimate beneficial owners due to complex offshore structures, the RES should consider if the complex structure gives rise to suspicious circumstances or poses a higher risk of ML/PF/TF. If so, the RES should then proceed with Enhanced Customer Due Diligence (ECDD) which requires verification of source of wealth/funds. The RES should then obtain the EA's approval to proceed with the transaction based on the EA's Internal Policies, Procedures and Controls (IPPC). The RES should also document all findings thoroughly, and lodge an STR where required.

Q10: HOW DO WE DEAL WITH A RENTAL TRANSACTION INVOLVING AN UCP (PROSPECTIVE TENANT) WITH A POSITIVE SCREENING RESULT? IF WE DO NOT PROCEED WITH THE TRANSACTION, HOW CAN WE DO SO WITHOUT ALERTING THE UCP OF OUR ACTIONS? WHAT IS THE RECOMMENDED APPROACH TO MITIGATE ANY POTENTIAL ISSUES OR LEGAL CONCERNS?

A10: If sanctions screening shows a positive hit on the UCP, the RES must not proceed with the transaction. The RES must disclose this to his EA, and file an STR. There is no need to mention to the client and the UCP on the filing of STR or that the screening is positive. The RES should inform his client (the landlord) that he cannot proceed with the transaction.

EAS and RESs must remember that if they continue to facilitate transactions in spite of a positive hit on TSOFA or UN sanctions lists, they may be committing an offence under the TSOFA or UN Act.

Q11: FOR SECTION 3 (PARTICULARS OF BENEFICIAL OWNER(S) OF LEGAL ENTITY / ARRANGEMENT) IN FORM U2, IT WILL BE VERY CHALLENGING TO GET THE DATE OF BIRTH (DOB) OF EVERY DIRECTOR / BO. THE DOBS ARE NOT STATED IN BIZFILE, AND IT WILL BE VERY ONEROUS TO CHECK WITH EACH INDIVIDUAL DIRECTOR/ BO, WHEN THESE ARE NOT OUR DIRECT CUSTOMERS. CAN WE DO AWAY WITH THE DOB REQUIREMENT?

A11: RESS should make best efforts to obtain sufficient identifying information to be able to properly verify the identity of the individuals involved. Examples of such information are DOBS and identification numbers, which will aid in screening against the sanctions lists.

If such information cannot be obtained through the authorised representative of the legal entity/legal arrangement, the RES can make a remark on this accordingly and attach any relevant correspondence showing the RES' attempt to obtain the information.

Q12: HOW DO WE PROVE THAT WE HAVE SCREENED THE CLIENTS/UCPS AGAINST THE TERRORISTS AND ZSANCTIONS LISTS?

A12: RESS who screen clients/UCPs manually can take screenshots of their screening results with date/time stamps after screening their clients/UCPs against the UN sanctions lists and other lists, to document when the screening was conducted and the results. For RESS who use commercial screening service providers, they should retain a copy of the screening report as proof of compliance.

All relevant screenshots/documents/forms must be submitted to their EAs.

The EAs must maintain these records for at least 5 years as proof of compliance.

Q13: IN A CO-BROKING SITUATION, EACH RES/EA IS SUPPOSED TO CONDUCT CDD MEASURES ON THEIR RESPECTIVE CLIENTS. IF A CO-BROKING RES/EA CONDUCTS ECDD ON HIS OWN CLIENT FOR THAT TRANSACTION, SHOULD HE INFORM THE OTHER CO-BROKING RES/EA OF THIS AND THE REASON(S) FOR DOING SO?

A13: An RES/EA who has conducted ECDD on his client does not need to inform his co-broking RES/EA (who represents the counterparty) about the ECDD conducted and the reasons for conducting ECDD. For transactions where each party of the transaction is represented by an RES/EA, each RES/EA is only responsible for conducting and maintaining CDD/ECDD records for their own clients. Similarly, if suspicious indicators are detected, RESS should file an STR without informing any other parties (including co-broking RESs).

Q14: IF THE CUSTOMER PARTICULARS FORM IS SIGNED BY ONE OF THE DIRECTORS OF A COMPANY, DO WE STILL NEED TO GET AN AUTHORISATION LETTER? DO WE NEED TO ASK FOR THE NRICS/PASSES OF THE DIRECTORS / BENEFICIAL OWNERS (BOS) AS SUPPORTING DOCUMENTS?

A14: In this scenario, the client/UCP is the company, and the company itself is intending to transact. Form A2/U2 should therefore be used for the client/UCP, and the director can sign the acknowledgement portion of the form. You will still need to have sight of an authorisation letter from the client or UCP to confirm the director's authority to act on behalf of the company. You will still need to identify and verify the identity of the BOS of the company and conduct CDD on the BOS.

Q15: I AM AN RES. WHAT ARE THE STEPS THAT I NEED TO TAKE REGARDING CDD DOCUMENTS AFTER I CLOSE THE DEAL?

A15: As a reminder, the various CDD forms and supporting documents must already have been completed/obtained before the client entered into the transaction. After the transaction is closed, the CDD forms and supporting documents must then be submitted to the EA for record-keeping. EAS are required to retain such documents and information for at least 5 years after the transaction is completed or business relationship has ended.

Q16: I AM A KEO. WHAT SHOULD MY EA DO IF MY RES SUBMITS CDD DOCUMENTS THAT ARE DATED AFTER THE TRANSACTION IS CLOSED?

A16: The EA should flag this as an instance of non-compliance by the RES and take remedial actions, including asking the RES to explain the delay and documenting the RES's explanation. If the CDD information reveals that there were suspicious circumstances or reasons to suspect ML/PF/TF that were not detected earlier in the transaction process, the RES/EA must file an STR.

Where CDD was conducted belatedly or not carried out at all, EAS MUST NOT instruct their RESS to “backdate" the dates on the relevant CDD documents or create CDD documents to conceal non- compliance.

Other remedial actions include implementing additional training for RESS on the EA's internal policies, procedures and controls, and/or taking internal disciplinary action in accordance with the EA's internal policies.

Where such non-compliance is discovered during the conduct of independent checks and audits by the EA, details of the non-compliance and remedial actions taken should be properly documented.